

WRITTEN SUBMISSIONS ON BEHALF OF THE RESPONDENT

Matter: ARBITRATION CASE NO. ARB/114/2026
Filed by: Konkast Engineering & Construction Private Limited

1. RA BILL NO. 7 (ISSUE 1). The Respondent's own site measurement, taken contemporaneously with the execution of the works, supports a certified value of Rs. 92,40,000. The Claimant's certification register is a unilateral document prepared by its own Engineer-in-Charge without independent verification and ought not to be preferred over the Respondent's measurement.
2. ATTRIBUTION OF DELAY (ISSUE 2). The Claimant's own Site Diary records continuing land-clearance formalities into April 2025, corroborating the Respondent's case that the delay was not, or not solely, attributable to the Respondent. The delay ought properly to be attributed substantially, if not wholly, to the Claimant's incomplete handover of site access.
3. ENFORCEABILITY OF CLAUSE 22 (ISSUE 3). Clause 22 operates as an unenforceable penalty absent proof of actual loss by the Claimant. No evidence of actual loss flowing from the delay has been led by the Claimant, and the clause ought to be struck down or, in the alternative, damages ought to be assessed only on proof of actual loss.
4. THE COUNTERCLAIM (ISSUE 4). The additional works claimed in the counterclaim were carried out at the Claimant's instance, following the discovery of an unforeseen underground utility line, and are corroborated by the Site Engineer's Memo and by the site diary entries for the relevant period. The absence of a formal variation order is a consequence of the urgency of the situation and does not detract from the genuineness of the claim.
5. RELIEF (ISSUE 5). For the reasons set out above, the claim as regards delay damages ought to be dismissed and the counterclaim of Rs. 68,00,000 ought to be allowed with interest and costs.

Filed on 30.06.2026